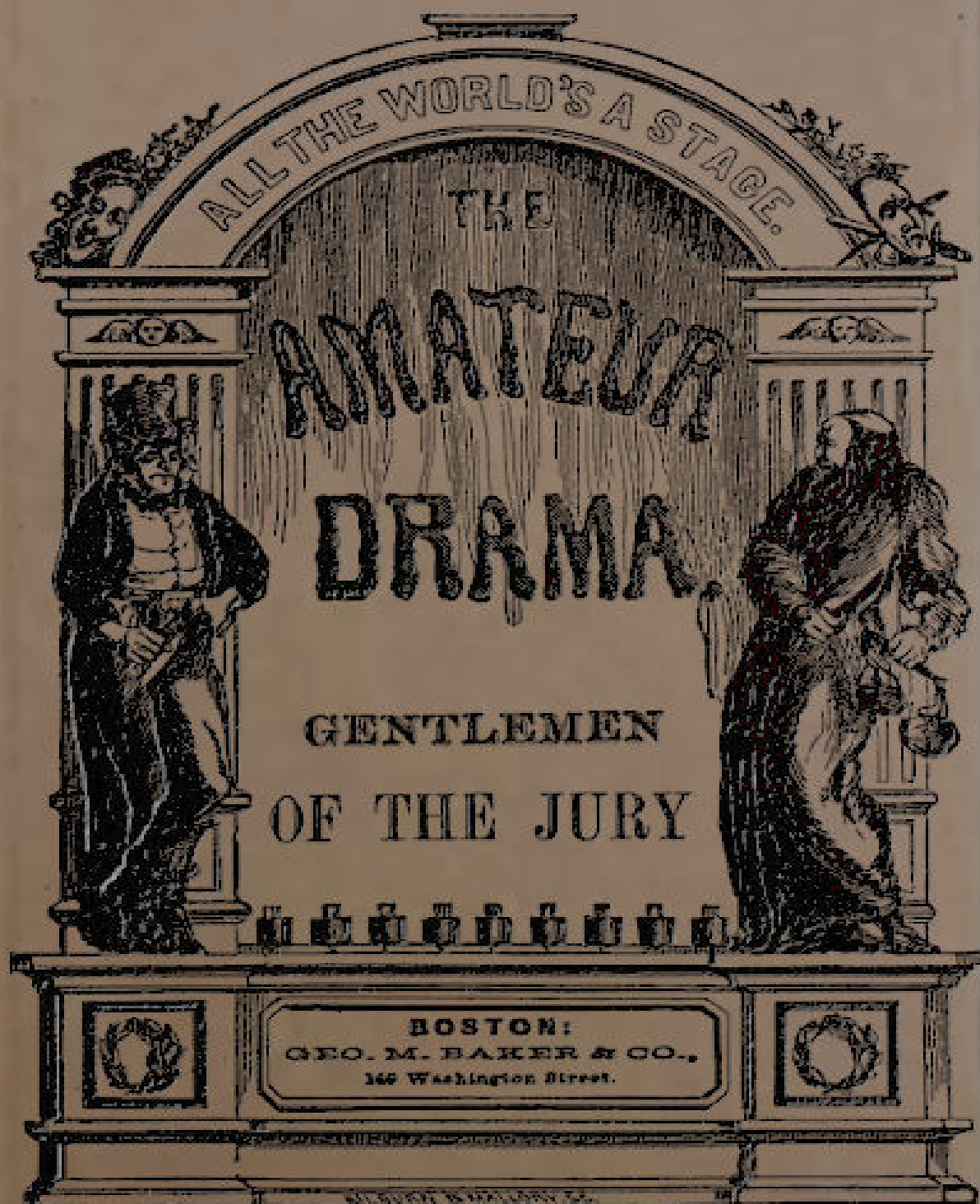
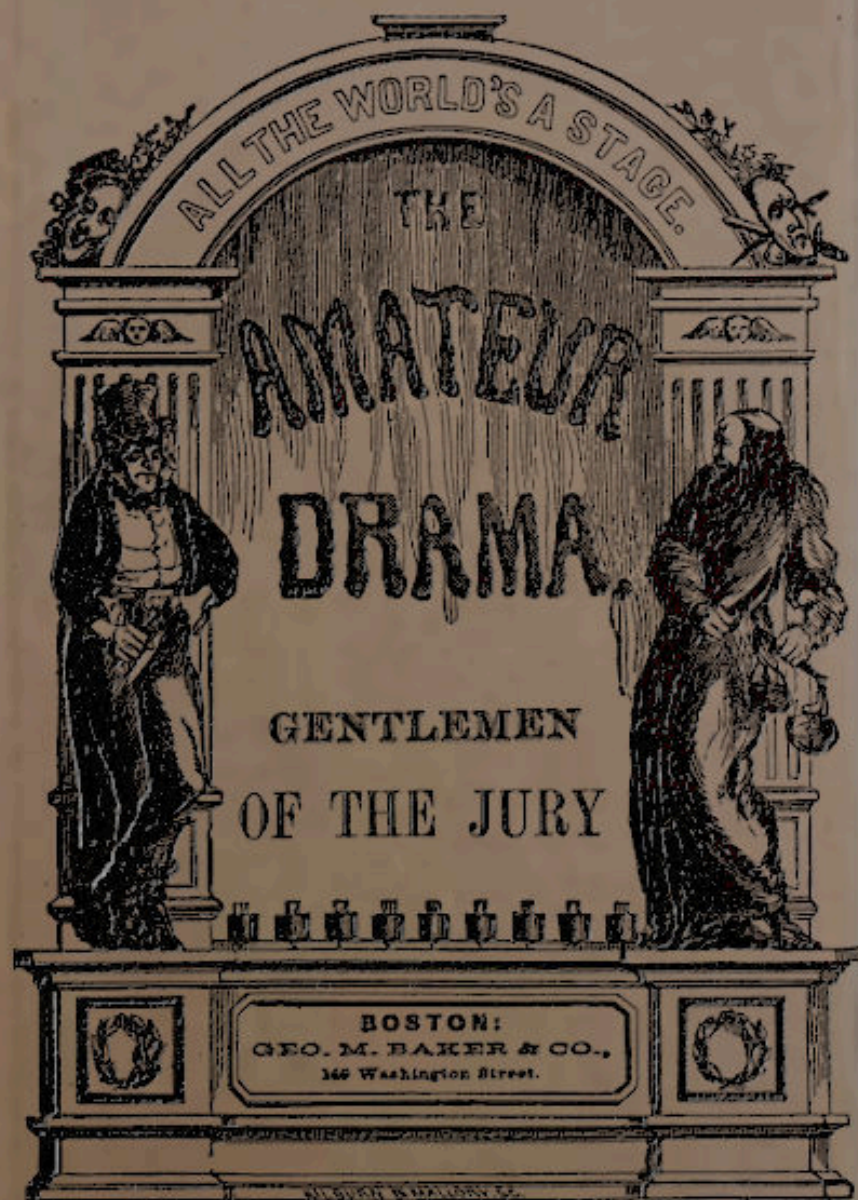






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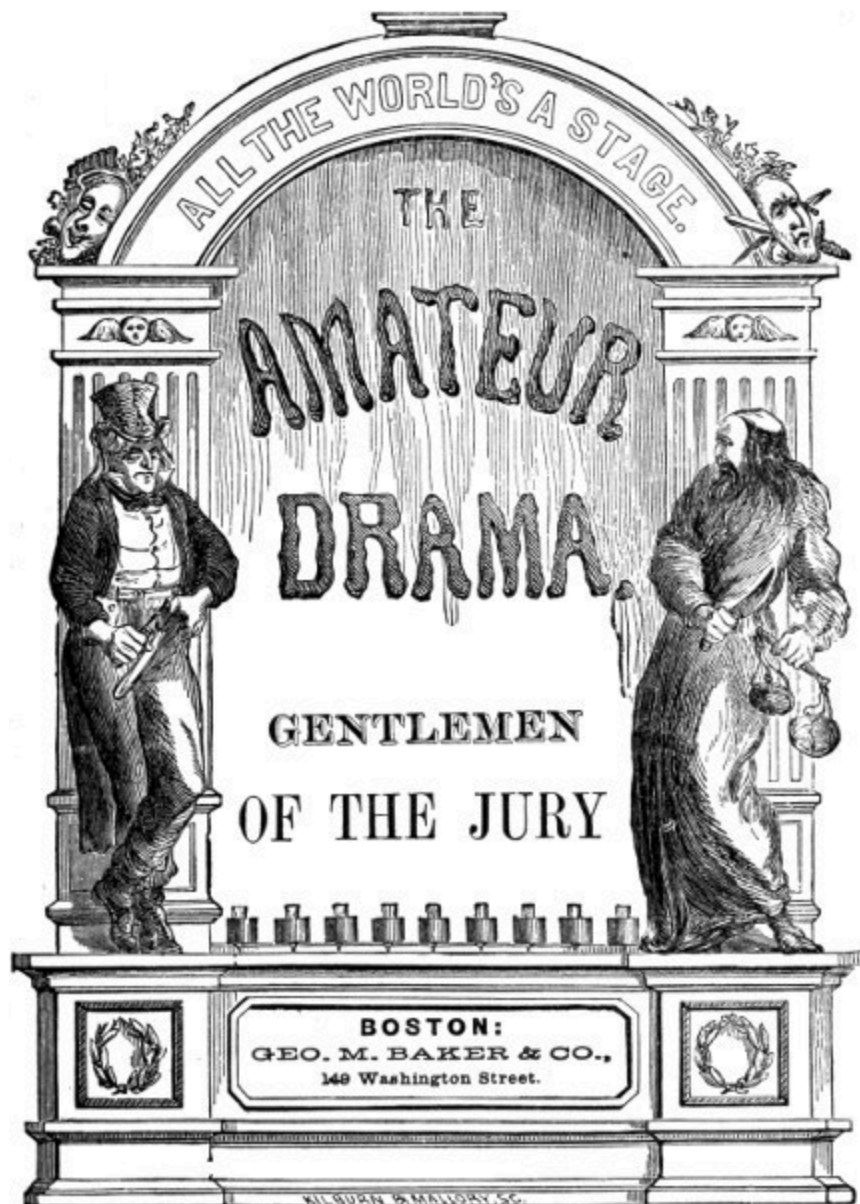
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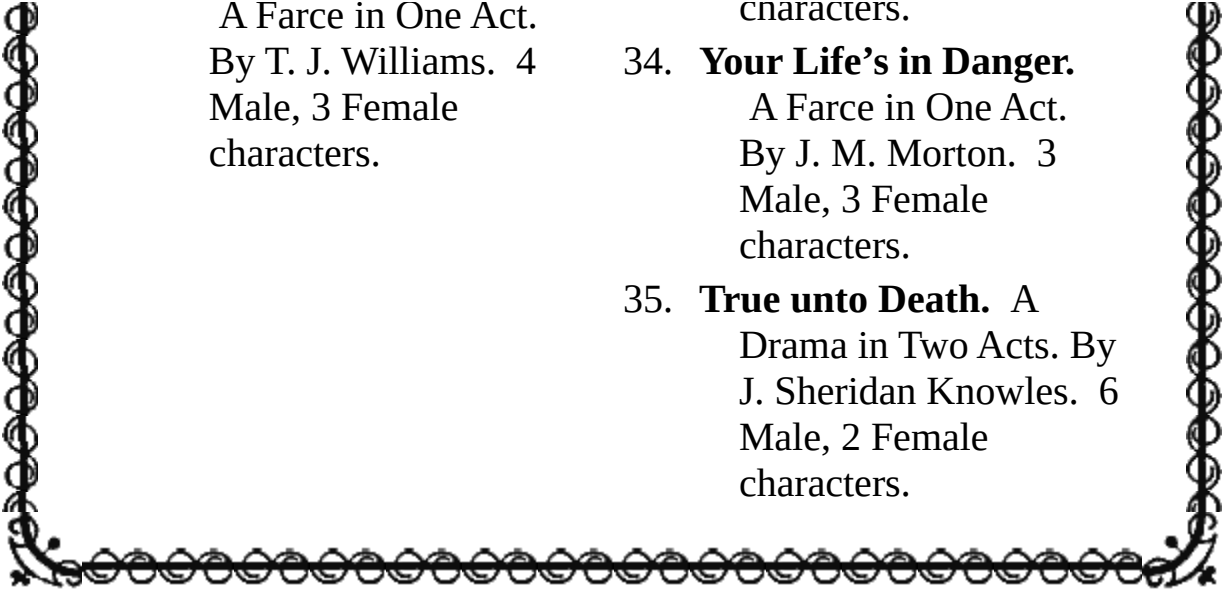
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GENTLEMEN OF THE JURY.

A Farce.

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“Once on a Time,” “Down by the Sea,” “The Last Loaf,”
“Bread on the Waters,” “Stand by the Flag,” “The Tempter,” “A Drop
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"A Love of a Bonnet," "A Precious Pickle," "The Revolt
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&c., &c., &c.

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GENTLEMEN OF THE JURY.

A FARCE.

FOR MALE CHARACTERS ONLY.

CHARACTERS.

PELEG PRECISE, Foreman. JOB TIMOROUS, JACOB DOUBTFUL, ABEL STRONGFIST,
JARVIS JOLLY, SOLOMON SNOWBALL, DENNIS O’ROURKE, NATHAN SHORT,
ENOS PAUNCH, BRAZEN BLOWER, PETER PUNSTER, SIMEON SLOW, Jurors.

SCENE.—*A Jury Room. Table, c., with paper, pens, ink, &c. Twelve chairs
around stage.*

*Enter from R. all the characters, in the order in which their names are
written, single file, across Stage, and face Audience. Door at R. is slammed
and locked.*

Timorous. Good gracious! we’re locked in! (*Rushes across stage to R.*)
Here, officer! officer!

Slow (at extreme R., catching TIMOROUS by arm, and swinging him round).
Stop that. It’s all right, you know.

Timorous. No, I don’t. I’m afraid of fire——

Punster (swinging him round to next man). What er that?

Timorous. And subject to fits——

Blower (ditto). You’re no *fit* juror.

Timorous. I must have air——

Paunch (ditto). Where *air* you, now?

Timorous. Or smother——

Short (ditto). Take him to his mother.

Timorous. What do you call this treatment?

O’Rourke (ditto). The movement cure, bedad.

Timorous. It’s outrageous——

Snowball (ditto). Da’s a fac’, da’s a fac’, honey.

Timorous. Diabolical——

Jolly (ditto). Ha, ha! now you go ag'in.

Timorous. Infamous!

Strongfist (ditto). Move on, stupid.

Timorous. I won't stand it.

Doubtful (pushes him into chair). Then sit down.

Precise (at table). Gentlemen, be seated. (*All sit.*) Before we discuss the case with which we have been intrusted, perhaps we had better take a vote.

Short. My idea exactly.

O'Rourke. Begorra, let's take something cowl'd.

Precise. We have been instructed to bring a verdict, "Guilty or not guilty." Please write your verdict. Here are slips of paper. (*Passes them round. All write, some on the table, some on chairs; SNOWBALL writes his against the wall.*)

O'Rourke (approaches SNOWBALL). Whist! I say, d'ye write Guilty wid a G or a J?

Snowball. Ob course not. Write him wid a pencil——so.

O'Rourke. O, be jabbers! It's yerself's a heathen——you ignoramus.

Precise. Now, gentlemen, if you are ready. (*Collects votes, spreads them on table, and assorts.*)

Timorous. I want a glass of water——I'm faint.

Strongfist. Shut up. Don't disturb the meeting.

O'Rourke. Bedad, it's a glass eye ye'll be wantin' if yer do.

Punster. His eye waters at the thought.

Precise. Gentlemen, the vote stands, six "Guilty," six "Not guilty."

Jolly. Hallo, a clean cut!

Short. Six mules in the crowd, certain.

O'Rourke. A majority on both sides, d'ye mind.

Snowball. Major who? Major who? Dar ain't no sogers here, hey, I ax you?

Precise. Well, gentlemen, there's work before us; and, that we may know each other, I propose that those who voted "guilty" take seats on the right, those who voted "not guilty," on the left.

Short. Good. I'm for the right.

Jolly. I feel decidedly *guilty*.

Slow. And so do I.

Strongfist. Right face. March!

O'Rourke. Begorra, captain, I'll train in that company. (*They all pass to R. as they speak. DOUBTFUL, TIMOROUS, SNOWBALL, PAUNCH, PUNSTER, and BLOWER pass to L.*)

Punster. Though on the left, we're in the right.

Paunch. Well, look here, I'm getting hungry. Ain't we going to have our dinner?

Blower. You're always thinking of eating.

Snowball. By golly, da's a fac'. Dat ar Mr. Punch hab an appetite like an earthquake.

Paunch. Bah! what do you know about it? Well, wake me up when you're through. (*Tips his chair back against wall, throws his handkerchief over his face, and falls asleep.*)

Snowball. Dar, de old man gwine for Morphine.

Precise. My vote was "Guilty," and of course I belong with the party on the right.

O'Rourke. Thru for yez, honey; and ye'll find it the party that's always right, jist.

Snowball. Hold yer hush, hold yer hush!

O'Rourke. Vat's that, ye heathen? I'd jist like to pound that thick pate till I had yer spachless——so I would. Begorra, ye'd cry Guilty then.

Timorous. O, come, let's have peace.

O'Rourke. Pace, is it? Ye've had a pace of my mind, onyhow.

Precise. No quarrelling, gentlemen. The quicker we decide this case the better. The government has charged one Peter Popgun with an attempt to defraud the revenue of the manufacturer's tax on gunpowder. Its secret agents, suspecting said Popgun, made a descent upon his establishment, which is a country store, seized certain articles, such as saltpetre, sulphur, and charcoal, which they found in a certain little back shop, said articles being, in their opinion, used by said Popgun in the manufacture of gunpowder. The said Popgun denies the manufacture of gunpowder, and sets up a defence that the said articles are used by him in concocting a certain patent medicine, known as the "Medical Dead Shot." Evidence has been produced on both sides. We have been charged to bring in a verdict on the evidence alone. I am quite convinced, by the testimony, that said Popgun did manufacture gunpowder, and evade the tax. Still, I should like to hear a free expression of opinion.

All (jumping up). Mr. Foreman.

Precise. Stop, stop. One at a time.

All. Yes, yes; one at a time, Mr. Foreman.

Precise. Stop, stop, I say. We can never settle it in this way.

Strongfist. Of course we can't. Let us six fight the other six. That will settle it.

O'Rourke. True for yez. A fray fight. I'm wid yer. (*About to remove his coat.*)

Precise. Silence. There can be no fighting here. You all want to speak. I will call upon each juror, giving both sides equal advantages of time and opportunity. Is not that fair?

All. Certainly. Of course. Go on. Go on.

Precise. Very well. I will first call upon Mr. Timorous.

Timorous (rising). Mr. Foreman, and gentlemen of the jury. (*Very low.*) I rise—I may say—yes, I rise—

O'Rourke. Louder.

Strongfist. Speak up like a man.

Timorous. I said—I rise—to say, if I may say—I rise to say—

O'Rourke. O, be jabbers, you're all out to say.

(*The party on the L., with the exception of PAUNCH, rise indignantly.*) Mr. Foreman, Mr. Foreman!

Precise (pounds on table). Silence! Order, gentlemen, order.

Blower. Mr. Foreman, this attempt of the party on the right to intimidate the party on the left is unjust.

Punster. Far from being righteous or courteous.

Snowball. Am we jurors, or am we not jurors? I ax you?

Precise. The interruption shall not occur again. Go on, Mr. Timorous.

Timorous. If you please, Mr. Foreman, I only rose to say—that, if I might be allowed to say it—that—I've got nothing to say.

Party on right. Shame! Humbug! Put him out!

Precise. Order, gentlemen.—Have you no reason to give for your vote of "Not guilty"?

Timorous. O, yes; lots. I voted "Guilty," no, "Not guilty," because—well, because—Popgun don't look like a man who would concoct such a sanguinary mixture as powder. He hasn't the air of a ruffian. His thoughts don't run in that explosive channel. I'm something of a physiognomist.

Snowball. Mahogany! What's dat?

Timorous. A physiognomist. I judge by the face—

Party on right. O, humbug!

Blower. Mr. Foreman, I protest. This attempt to stifle the voice of Justice is a high-handed crime.

Snowball. Yes, sar; it's bigamy, kleptomania, arson.

Precise. Order, gentlemen.—Go on, Mr. Timorous.

Timorous. But then I haven't any particular opinion in the matter; and if you want me to change—

Blower. Silence, traitor!

Snowball. Shut up yer tater trap.

Punster. Suppose you sit, for a change. (*Pulls him down to seat.*)

Timorous. Anything to oblige.

Precise. Mr. Jolly.

Jolly (rising). My turn, hey? Mr. Foreman, and gentlemen of the jury,

To make or not to make, that is the question.
Whether 'tis better to let Popgun suffer
The law's full penalty for mixing powder,
Or to take arms against this awful tax,
And by our verdict free him.

Gentlemen, Popgun is a dangerous man. I am for his annihilation. He is a second Guy Fawkes. Behind his shop are concealed those explosive materials destined to spread havoc and destruction in an innocent neighborhood. We might spare him if the possible destruction of a thousand or two of his immediate neighbors was the only consequence to be feared. But he's a sneak; he dodges the tax. That we must not suffer. The medicine story won't do; the dose is too heavy; it won't stay on the stomach. That gun recoils upon Popgun, who is too heavily charged by the evidence to be discharged by this jury. (*Sits.*)

Precise. Order, gentlemen. Mr. Doubtful.

Snowball. No, sar, no, sar. I move we lay him onto de table, *sinner die*.

O'Rourke. Die, is it, ye black sinner? Howld yer pate, or you'll die jist.

Doubtful (rising). Mr. Foreman, and gentlemen of the jury, there's one p'int in this evidence I want cleared up.

O'Rourke. Is it a pint of whiskey, I donno?

All. Order, order.

O'Rourke. That's what I'd like to do, and drink it, too.

Doubtful. If that air Popgun made gunpowder, why didn't somebody see him do it? Cause a man's got saltpetre in his house, and sulphur and charcoal, it doesn't foller that he's going to make gunpowder. I've got charcoal in my house——kindle the fire with it; sulphur to bleach with; saltpetre for curing purposes. But nobody ever said I made gunpowder. It's ridiculous. Popgun's got eggs in his store. Why don't you say he hatched *them*? (*Sits.*)

Snowball. Da's a fac', da's a fac'. Second de motion.

All. Order, order.

Precise. Mr. Strongfist.

Strongfist. Well, you're a pretty set of sneaks over there, you are.

All. Order, order.

Strongfist. O, I know what I'm about. I'd like to get in among you. I believe in justice. I believe in any man's having his say in this world; but I don't believe in arguing about a matter that's as plain as the nose on your face. The man made gunpowder, and sold it, didn't pay the tax, and you fellows over there know it. You're a set of obstinate fools; and it's the duty of all loyal citizens to stand by the government and punish traitors. The government's been insulted by this contemptible Popgun, and you fellows on the left uphold him. Our duty is clear, to bring you to your senses. (*Takes off coat.*) So, come on. (*Squares off.*)

O'Rourke. I'm wid yez. Fag a ballah! Erin come unim.

All. Order, order.

Precise. Gentlemen, peace, I pray. Mr. Strongfist, your argument is very weak.

Strongfist. Is it? Well, my fist is strong; let me try that.

Precise. No, sir; you will please be seated. Mr. Paunch.

Snowball (shaking him). Here, Mr. Punch, Mr. Punch.

Paunch. Hey? O, yes. Mr. Foreman, I've got precious little to say. I'm hungry; I've had nothing to eat since morning. I was invited out to dinner at five o'clock with Alderman Cross. Fine leg of venison and native tomatoes,

sliced, stewed, and broiled. The alderman is a capital eater, weighs three hundred and fifty, and has the best hogs——

Precise. Won't you confine yourself to the question, Mr. Paunch?

Paunch. O, yes. Hogshead of Madeira you ever tasted. It's capital. Then his cheeses! Good gracious! they're mighty——

Precise. Mr. Paunch, Mr. Paunch!

Paunch. They're mighty fine. What did you say, sir?

Precise. Will you give your reasons for voting "Not guilty"?

Paunch. Certainly. Stop. Did I vote "Not guilty"? I don't remember. It don't make any difference. Settle it as you please, only remember I must dine with Alderman Cross at five. (*Sits and goes to sleep again.*)

Snowball. Question, question! We'll all dine with Cross, hey! I ax you.

Precise. Mr. Slow, you next.

Slow. Hey? Yes. Well, I don't know. Popgun did make gunpowder, I guess, cause he had a little shop. (*Pauses.*)

Precise. Well, go on, Mr. Slow.

Slow. Yes. Well, he had a little shop, Popgun had, and he made somethin' in that shop; and if he didn't make gunpowder, he made somethin' in that little shop that he didn't pay no tax onto. And so he's guilty er somethin' or other in that little shop. So long's he's caught, what's the odds, as long as you're happy. (*Sits.*)

Snowball. Doubted, doubted.

All. Order.

Precise. Mr. Blower.

Blower (*rises, flourishes his handkerchief, blows his nose, strikes an attitude*). M-r-r-r-r. Foreman, and genteelmen of the jury, it is with spontaneous emotion that I rise to address you. You, genteelmen, with me, have looked upon a touching scene to-day. We have seen an enlightened citizen of this great republic, which, like the light of yonder firmament, attracts the attention of the whole world. We have seen him dragged from

the bosom of his family and placed at the bar, at the bar, gentlemen, there to answer to grave and serious charges. It is evident that in the mysterious depths of that little back shop something has been concocted. The government says "Powder;" the defendant says "Shot." Powder and shot! "Powder" or "shot," in this case. One possesses the power to blow the human frame into infinitesimal particles; the other cures all ills that flesh is heir to. Can we pause and deliberate? Look at that man, dragged from the bosom of his family; his wife and children——

Jolly. Beg your pardon, Blower. Popgun is single.

Blower. Hey? Dragged from the paternal mansion. Hear the cry of the agonized and aged mother of the prisoner, as she stands upon the doorstep and screams, "My child! Bring back my little Popgun!"

Jolly. Wrong again, Blower. He's neither father nor mother.

Blower. Hey! Poor orphan! without a friend in the world! Can we turn our backs upon him? No. Let us be merciful. Let us indorse his patent medicine, and carry from this room a verdict of Not guilty. Then shall the tears of the orphan be squelched in gratitude, and the blessings of future generations of Popguns follow us.

O'Rourke. Begorra, that's a teching appeal.

Precise. Now, Mr. O'Rourke, your turn.

O'Rourke (rising). I ax yer pardon, judge, Mr. Foreman, and gintlemen all. Wid the blood of forty ginerations of O'Rourkes a seethin' with patriotic emotion in me bosom, d'ye mind; with faylings of gratitude for the fray gifts of life, liberty, and the pursuit of happiness, guaranteed by this moighty republic, which, as I look back into the future, is iver prisint in all its glory, d'ye mind. Could I be so base as to dash myself foreninst those illigant laws that crush the wake and guard the strong? By the grane sod of ould Ireland, niver! If that thaif of the wurld, Popgun, has transgressed the law, let him swing. And what for would he be mixing saltpatre and——and——and brimstone, and——and charcoal, if not to blow up somebody. Medicine, is it? It's my opinion that we'd better bring in a verdict of Guilty, and hang him, wid a recommendation to mercy, provided forty doses of his Medical Dead Shot bring him to life afther he's been dead and buried seven days. Thim's my verdict, judge. (*Sits.*)

Jolly. That's a reviving verdict.

Precise. Mr. Punster.

Punster (rising). Mr. Foreman, and gentlemen of the jury, the party popularly known in this suit as Popgun is a small affair, but I do not wonder that he kicks against this attempt of the government to charge him with powder he never made. How would you like it yourselves, gentlemen? Imagine yourselves Popguns, and happy in the disposing of butter, cheese, and—and hairpins to a needy community. Upon a luckless occasion, you sell ten cents' worth of powder to a red-headed urchin on the eve of our glorious independence. The awful crime is repeated; and, by the power of government, you innocent Popguns are incarcerated on a grave charge. You hear nothing but powder; you are loaded with reproaches and powder; it is rammed down your throats, until, like Popgun, you burst with indignation. Have we not heard from the lips of competent witnesses the amazing power of his Dead Shot? An old man had suffered forty years with influenza; the Dead Shot stopped it forever. An old lady, bent double with the rheumatism, was made straight by its power. A young mother, whose tender infant had wailed night after night, was loud in its praises. Gentlemen, this suit comes from the malice and jealousy of an envious rival. Gentlemen, this is a conspiracy. Let us clear Popgun of the charges under which he labors, by applying the match of justice to his overloaded soul. Then will he go off triumphantly, scattering destruction among his enemies, and give a good report of our deliberations. (*Sits.*)

Snowball (jumping up). See here, white folks, what's de use? what's de use?

Precise. Mr. Snowball, you're out of order.

All. Go on, Snowball. Fire away.

Snowball. Mr. Foreman and gemblem. Of course it am. Why not? And, if not, wherefore? I ax you. If de blessed Constitution of dese ere United States ob America don't permit the humblest of her sex to choose de proper medicines for dar physical systemns, wedder it be gunpowder or gunpowder tea, what's de use ob bein' citizens and citizenesses of dese here republic? I ax you. Who's Popgun? Am he, or am he not, a phusician? I ax you. I don't care what his moral perquisites be, wedder he vote de demicratic or de

bobolition. Does he cure de squills which air am flesh to? I ax you. When dat ar old man, which my white brudder alluded to, had de influendways, did he stop his sneezin? I ax you. When dat ar old woman hobble to him wid de rheumatics, did he straighten her out? I ax you. When dat ar baby squaked in its slumbers of midnight, did Popgun's Dead Shot fix it? I ax you. If so, and you find it so,—and I ax you to find it so,—you are forced to acquit Popgun as a medical dedical sturgen and phusician—ob course you am; for don' de stolid phalanx of justice circumbend every man on Columbia's footstool, wedder black or white, male or female? and de aurora borealistic splendors of eternal vigilance abide in de scrutinized recesses of de enlightened jury-room? I ax you.

O'Rourke. Begorra! send for an interpreter.

Precise. Mr. Short.

Short (comes down to table). It's my opinion, gentlemen, there's been a great deal of time and gas wasted in our deliberations. I've got very few words to say on this subject. Popgun manufactured an article which the government said was gunpowder. Popgun denies it. That is the question for us to decide. We were shown in the court-room a sample of this disputed article. It looked like gunpowder; it smelt like gunpowder; it felt like gunpowder. I took away the box. Here it is. (*Produces box.*) Some of you think it is not gunpowder. I propose to give it a practical test. (*Places box on table, takes off cover, takes a match out of his pocket.*)

Timorous. What! You're not going to fire it off!

Short. Don't be alarmed. There's only a pound or two. It can't do much damage.

Strongfist. You'll blow us all up!

Jolly. The man's crazy.

O'Rourke. Begorra, there! Aisy wid yer pranks.

All. Stop him! Stop him!

Short. Here she goes. (*Draws match across table.*)

All. Help! Murder! Officer! Put him out, &c. (*TIMOROUS crawls under table; SNOWBALL jumps up into chair and makes frantic attempts to crawl up*

the wall; DOUBTFUL runs into corner, pulls PAUNCH up to cover him; BLOWER gets down and covers himself with a chair; PRECISE stops his ears, and crouches in a corner; STRONGFIST and PUNSTER seize SHORT, one on each side; O'ROURKE seizes SHORT by coat-tail behind; JOLLY and SLOW try to get behind each other.)

Precise. Would you murder us?

Strongfist. Blow us to pieces?

O'Rourke. Call in the judge.

Short. Let me go, I tell you. (*Kicks O'ROURKE, strikes PRECISE and STRONGFIST, and sends them to the floor.*)

O'Rourke. I'm kilt intirely.

All. Help! Murder! Help!

Short (holding the match). Now, gentlemen of the jury, here is a convincing test. Shall I apply it, or are you ready with a verdict?

All. No. Yes. Verdict. Verdict.

Short. Gentlemen, what is your verdict, guilty or not guilty?

All. Guilty.

Short. All right. Mr. Foreman, make out your papers. (*Blows out match. All resume seats.*)

Timorous. Well, I never had such a scare in all my life.

O'Rourke. By me soul! I say a wake a comin' for the last of the O'Rourkes.

Snowball. By golly, I'm all ob a hot chill in my backbone.

Precise (who has been writing). Gentlemen, listen to your verdict. "We find the defendant, Peleg Popgun, guilty."

Jolly. "So say we, all of us."

All. Ay. Ay.

Short. Then there's no further use for this box of sawdust, I suppose.

All. Sawdust?

Short. Exactly. You thought 'twas gunpowder. No matter. I saw I could throw *dust* in your eyes with it. I can't say much for your argument. You're like all the rest of this universal Yankee nation——anxious to fasten your tongue tackle on to every question. There's a very plain case here, which might have been a very knotty one but for the sawdust, which has brought you to terms, and thus proved a better medicine than Popgun's celebrated Dead Shot.

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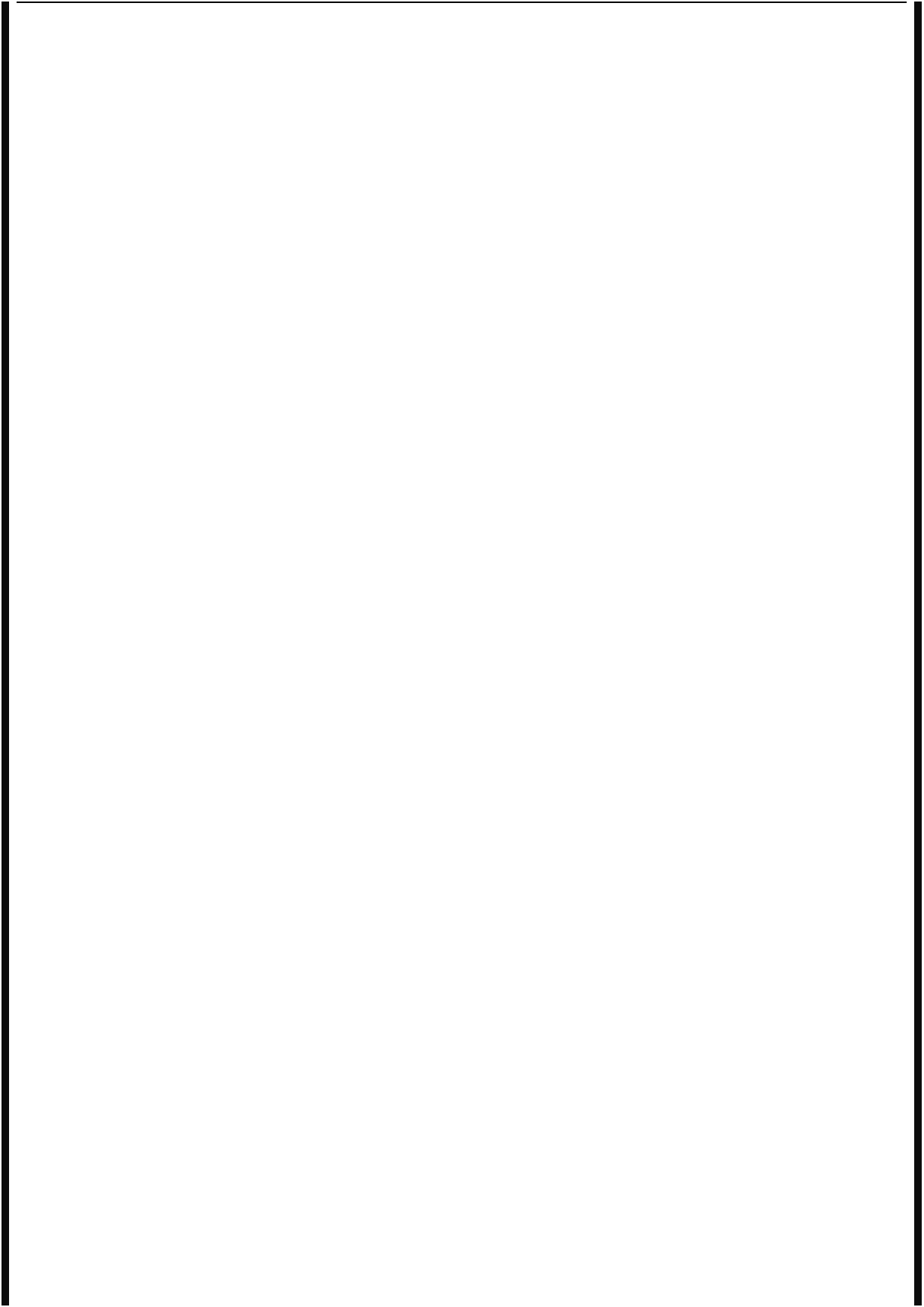


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Transcriber's Notes

Some typographical errors have been corrected:

Page	Printed	Correction	Extract
2	Out,	Out.	28. Bowled Out. A Farce in One
10	protest this	protest. This	I protest. This attempt to stifle
28	Baker s	Baker's	"A Baker's Dozen," &c.
28	characters	characters.	Waters. 5 male, 3 female characters.

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